

February 5, 2007



U.S. Department  
of Transportation

400 Seventh Street, S.W.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 12454  
(THIRD REVISION)

EXPIRATION DATE: January 31, 2011

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Ethyl Corporation  
Richmond, VA
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain DOT Class 105 tank cars qualified by an alternative testing protocol. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 180.509(e) and 180.509(k) in that Class 105 tank cars must be tested, except as specified herein and the shipping paper requirements in § 172.203(a) are waived.
5. BASIS: This special permit is based on the application of Ethyl Corporation dated January 26, 2007, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Material Description                                            |                        |                       |               |
|---------------------------------------------------------------------------|------------------------|-----------------------|---------------|
| Proper Shipping Name                                                      | Hazard Class/ Division | Identification Number | Packing Group |
| Metal carbonyls, n.o.s.<br>(Methylcyclopentadienyl manganese tricarbonyl) | 6.1                    | UN3281                | II            |
| Motor fuel anti-knock mixtures<br>(tetraethyl lead)                       | 6.1                    | UN1649                | I             |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings authorized are DOT Class 105 tank cars owned and operated by the special permit holder and identified in the application.

b. TESTING - In addition to the requirements in § 180.509(d), (f), (g), (h), (i) and (j), each tank car must have a hydrostatic test that conforms to the following:

(1) Prior to the hydrostatic testing, the tank car facility must remove any pressure relief device from the tank and flange the opening to prevent leakage during the test.

(2) Each tank must be filled with water or a liquid with similar viscosity at a temperature not to exceed 100 degree Fahrenheit. After filling, the tank car must be pressurized to not less than the tank test pressure, as indicated on the tank and the certificate of construction. The tank, including its closures, must hold the prescribed pressure for at least 20 minutes, during which time the tank car facility must inspect the tank for leakage, bulging, or any other defect that may render the tank car unsafe for transportation.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Marking: Each tank car must be marked with "DOT-SP 12454" in letters and numerals at least 4 inches high on a contrasting background above the DOT Specification marking. Each car must be marked with the inspection and test due date (calendar year only) in accordance with Appendix C of the AAR Tank Car Manual.

d. The shipping paper entry requirements of § 172.203(a) are waived.

e. Packages permanently marked 'DOT-E 12454', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packages marked on or after October 1, 2007 must be marked 'DOT-SP 12454'.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: None as a requirement of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard  
Deputy Associate Administrator  
for Hazardous Materials Safety

**February 5, 2007**

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: FRA/AM